

Before the
FEDERAL MARITIME COMMISSION

Washington, DC 20573

Docket No. 22-20

MSRF Inc. v. HMM Company Limited

**CONSENT MOTION TO EXTEND DEADLINE TO COMPLETE DEPOSITION OF
FACT WITNESSES**

Petitioner MSRF Inc. hereby moves for a 30-day extension of the deadline to complete the deposition of fact witnesses. The current deadline is December 16, 2022, as established by the Commission in the scheduling order issued by October 6, 2022 (“Scheduling Order”).

The parties issued their initial requests for production (“RFP”) of documents and electronically stored information (“ESI”) in accordance with the October 14, 2022, deadline established in the Scheduling Order and have been diligently working to comply with the requests. However, the parties have encountered certain issues related to ESI. Specifically, the number of emails identified by Respondent as responsive to Complainant’s RFP is significantly larger than anticipated. Conversely, the number of emails identified by Complainant is significantly lower than the number of emails identified by Respondent. The parties need additional time to determine whether the search parameters used to identify responsive emails are accurate and then to produce the responsive emails. Once these issues are resolved, the parties will then need time to review the emails and associated documents, and prepare for the depositions of fact witnesses. The upcoming holiday season will also reduce the number of work days available for counsel to review documents and prepare witnesses.

On November 29, 2022, undersigned counsel conferred by email with Neil Quartaro, counsel for Respondent HMM Company Limited. Mr. Quartaro consents to this motion.

For the foregoing reasons, Petitioner requests a 30-day extension of the deadline to complete the deposition of fact witnesses. If this motion is granted, the new deadline will be January 16, 2023.

Dated: November 29, 2022

Respectfully submitted,

/s/ R. Kevin Williams

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CERTIFICATE OF SERVICE

I certify that on the 29th day of November 2022, the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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